SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 1384 of 2021 (YEAR: 2001)

CORAM: M.B. SHAH, S.N. PHUKAN

Biman Krishna Bose
... Appellant(s) / Petitioner(s)
Versus
United India Insurance Co. Ltd.
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986, Insurance Act, 1938
Sections:	Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Held that public sector insurance companies cannot arbitrarily refuse to renew a medical insurance policy merely because previous claim disputes were raised.

RATIO DECIDENDI

The Court held that: Held that public sector insurance companies cannot arbitrarily refuse to renew a medical insurance policy merely because previous claim disputes were raised. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Biman Krishna Bose v. United India Insurance Co. Ltd. (Civil Appeal No. 1384 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, Insurance Act, 1938, particularly Section 14 Consumer Protection. Held that public sector insurance companies cannot arbitrarily refuse to renew a medical insurance policy merely because previous claim disputes were raised.

OPERATIVE ORDER

ORDER: Decided